IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
SECOND APPELLATE DISTRICT
DIVISION 7

FRANKLIN ARMORY, INC.,

Plaintiff and Appellant,

v.

CALIFORNIA DEPARTMENT OF JUSTICE et al.,

Defendants and Respondents.

Court of Appeal Case No. B340913

Los Angeles County Superior Court
Case No. 20STCP01747

MOTION TO STRIKE PORTIONS OF APPELLANTS' BRIEF RELATING TO APPELLANTS' ALLEGATION THAT DEFENDANTS IMPROPERLY WITHHELD DOCUMENTS FROM DISCOVERY AND ARGUMENT RELATIVE THERETO; DECLARATION OF KENNETH G. LAKE IN SUPPORT THEROF

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Defendants/Respondents hereby move to strike portions of Appellants' opening brief relating to Appellants' allegation that Defendants improperly withheld documents from discovery and argument relative thereto because these portions of Appellants' brief are based on argument of Appellants' counsel drawn from discovery requests and responses as well as a "JIRA Log" that were not in the record before the trial court. (Davis Dec. re Req. for Jud. Notice, dated 5/21/25, ¶¶ 6-11.) In addition, as discussed further below, Appellants argument is legally incorrect, as a matter of law, because the State of California, acting by and through the California Department of Justice (DOJ) timely objected to the two subject requests for production and Appellants never filed a motion to compel challenging the objections. (Lake Dec., ¶¶ 2-6.)

Defendants/Respondents move to strike the following portions of Appellants' brief:

-Pg. 18, second par., last sentence:

> "Appellants have since discovered, in documents improperly withheld from discovery, that work began on a fix for the DES as early as January 2020."

-Pg. 30, first par., second to last sentence phrase:

> "and other evidence contradicting those claims.7"

-Pg. 30, footnote 7, starting with the second sentence:

> "But as FAI learned just weeks before this brief was due, Respondents had withheld evidence that could have provided that very rebuttal. (Davis Decl. Supp. Req. Jud. Notice, ¶¶ 4-6, 12-13.) That evidence,

> requested but not produced in discovery, appears to confirm that the "Other" enhancement had been initiated (and may have been completed) as early as January 2020 and identified the DOJ employee responsible for the work. (*Id.* at ¶¶ 7-11 & Ex. B.) Without the opportunity to question the employee who made the DES changes or to conduct discovery about the contents of the withheld documents, Appellants' ability to challenge the narrative Mendoza created was stymied. Respondents cannot withhold evidence and then benefit from a lack of factual rebuttal."

"When a brief or part of a brief fails to comply with the Rules of Court (e.g., lacks citation to the record or refers to matters outside the record), the opposing party can file a motion to strike the brief in whole or in part . . ." (Eisenberg et al., Cal. Prac. Guide: Civ. App. & Writs (Rutter Group 2025) § 5:194; citing Cal. Rules of Court, rule 8.204(e)(2), *C.J.A. Corp. v. Trans-Action Financial Corp.* (2001) 86 Cal.App.4th 664, 673 ["granting motion to strike 'several passages' in brief that referred to evidence not in record.].) "No time limit is prescribed by the Rules of Court for filing a motion to strike a defective brief." (*Id.* at § 5:195.)

"Appellate review is limited to the record that was before the trial court." (*Pinter-Brown v. Regents of University of California* (2020) 48 Cal.App.5th 55, 86; citing *C.J.A. Corp.*, *supra*, 86 Cal.App.4th at p. 673.) *See also Pulver v. Avco Financial Services* (1986) 182 Cal.App.3d 622, 632 ["Likewise disregarded are statements in briefs based on matter improperly included in the record on appeal."].)

Appellants' allegation of improper discovery responses is based on two requests for production propounded to the DOJ. DOJ timely objected to these requests on numerous grounds in its initial responses. It repeated and restated these objections in amended responses served pursuant to a meet and confer with Appellants' counsel as well as in responses to a supplemental request for production. Appellants never filed a motion to compel challenging the objections. None of these discovery requests or responses were in the record before the trial court. (Lake Dec. ¶¶ 2-6.)

In addition, Appellants argument is legally incorrect, as a matter of law, because the DOJ timely objected to the two subject requests for production and Appellants never filed a motion to compel challenging the objections.

In *Sexton v. Superior Court*, (1997) 58 Cal.App.4th 1403, the court concluded that "the time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers to interrogatories." (*Id.* at p. 1409-1410.) "Failure to timely move to compel within the specified period constitutes a waiver of any right to compel a further response." (*Id.* at p. 1410.) Absent a timely motion challenging those objections and an order compelling discovery, a defendant has no obligation to produce the documents. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1434.) Thus, the entire premise of Appellants' assertion of wrongful withholding of documents is incorrect, as a matter of law.

In addition, the "JIRA Log" referenced in the Davis declaration indicates that it was generated on February 12, 2025, long after proceedings in the trial court ended. (Davis Dec., ¶ 10, Ex. B, p. 1.) Thus, this document clearly was not in the record before the trial court. Furthermore, Appellants' assertion that this document was wrongfully withheld in response to the subject requests for production makes no sense because it did not exist at the time of the responses. Also, counsel's argument as to the contents of the document completely lacks foundation and is based on hearsay. The court took judicial notice of the existence of the document, not it contents.

Furthermore, it should be noted that Appellants' argument essentially misstates the trial court record in that Bureau of Firearms Director Allison Mendoza clearly indicated in her declaration in support of the motion for summary judgment that, "at some point after the latter part of 2019, the Bureau initiated a review to evaluate the resources required for a potential DES enhancement to add an 'other' option in the 'Gun Type' drop-down menu" which included exploring "the possibility of doing a DES enhancement that was reduced in scope, temporary, and applicable to only the Title 1 firearm." (Mendoza Dec., ¶¶ 8,10, Appen. Vol. VI, pp. 786-787.) Director Mendoza further stated that she was advised by the Bureau's technical staff that this proposal would present operational difficulties in properly recording the sales and transfers of the Title 1 firearm in the DES. She stated that such operational difficulties would have raised significant public safety concerns within the DOJ which

ultimately decided to not immediately proceed with the temporary DES enhancement. (Mendoza Dec., ¶ 10, Appen. Vol. VI, p. 787.)

Thus, Director Mendoza's declaration is entirely consistent with the deposition testimony of Cheryl Massaro-Florez, cited in Appellants' brief, as to the timing of the potential temporary modification to the DES that did not go forward and the subsequent permanent modification. (App. Brf, pp. 18-19.) Plaintiff also deposed Director Mendoza after the filing of the summary judgment motion. (Appen., Vol. X, pp. 1285-1322.) In addition, Appellants deposed additional DOJ officials involved in the DES modification including Maricela Leyva and Christina Rosa-Robinson. (*See e.g.* Appen., Vol. XI, pp. 1432-1450, Vol. VI, 890-905.)

For the reasons set forth above, Defendants/Respondents respectfully request that the court grant the motion to strike the portions of Appellants' opening brief as specified above.

Dated: June 18, 2025

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